

**ALL INDIA COUNCIL FOR TECHNICAL EDUCATION
New Delhi**

NOTIFICATION

Dated 01-07-2009

Sub: Prevention and prohibition of Ragging in technical Institutions, Universities including Deemed to be Universities imparting technical education.

F.No.37-3/Legal/AICTE/2009 – In exercise of the powers conferred under Section 23 read with Section 10 (b), (g), (p) and (q) of AICTE Act, 1987, the All India Council for Technical Education, hereby makes the following Regulations:-

1. Short title and commencement:-

- (i) These Regulations may be called the All India Council for Technical Education (Prevention and Prohibition of Ragging in Technical Institutions, Universities including Deemed to be Universities imparting technical education) Regulations 2009.
- (ii) They shall come into force on the date of the notification.

2. Objectives:-

In view of the directions of the Hon'ble Supreme Court in SLP No. 24295 of 2006 dated 16-05-2007 and in Civil Appeal number 887 of 2009, dated 08-05-2009 to prohibit, prevent and eliminate the scourge of ragging including any conduct by any student or students whether by words spoken or written or by an act which has the effect of teasing, treating or handling with rudeness a fresher or any other student, or indulging in rowdy or undisciplined activities by any student or students which causes or is likely to cause annoyance, hardship or psychological harm or to raise fear or apprehension thereof in any fresher or any other student or asking any student to do any act which such student will not in the ordinary course do and which has the effect of causing or generating a sense of shame, or torment or embarrassment so as to adversely affect the physique or psyche of such fresher or any other student, with or without an intent to derive a sadistic pleasure or showing off power, authority or superiority by a student over any fresher or any other student, in all higher education institutions in the country, and thereby, to provide for the healthy development, physically and psychologically, of all students, the All India Council for Technical Education,(AICTE) brings forth these Regulations.

3. Definitions:-

- (a) **“Act”** means the All India Council for Technical Education Act 1987 (52 of 1987);
- (b) **“Technical Institution”** means an institution of Government, Government Aided and Private (self financing) conducting the courses/programmes in the field of technical education, training and research in Engineering, Technology including MCA, Architecture, Town Planning, Management, Pharmacy, Hotel Management & Catering Technology, Applied Arts & Crafts and such other programmes and areas as notified by the Council from time to time;
- (c) **“University”** means a University defined under clause (f) of section 2 of the University Grants Commission Act, 1956 and includes an institution deemed to be a University under section 3 of that Act.
- (d) **“Academic year”** means the period from the commencement of admission of students in any course of study in the institution up to the completion of academic requirements for that particular year.
- (e) **“Head of the institution”** means the Vice-Chancellor in case of a university or a deemed to be university, the Principal or the Director or such other designation as the executive head of the institution or the college is referred.
- (f) **“Fresher”** means a student who has been admitted to an institution and who is undergoing his/her first year of study in such institution.
- (g) Words and expressions used and not defined herein but defined in the Act or in the General Clauses Act, 1887, shall have the meanings respectively assigned to them in the Act or in the General Clauses Act, 1887, as the case may be. And
- (h) All other words and expressions used herein and not defined but defined in the All India Council for Technical Education Act, 1987 (52 of 1987), shall have the meanings respectively assigned to them in the said Act;

4 **What constitutes Ragging:** - Ragging constitutes one or more of any of the following acts:

- a. any conduct by any student or students whether by words spoken or written or by an act which has the effect of teasing, treating or handling with rudeness a fresher or any other student;
- b. indulging in rowdy or undisciplined activities by any student or students which causes or is likely to cause annoyance, hardship, physical or psychological harm or to raise fear or apprehension thereof in any fresher or any other student;
- c. asking any student to do any act which such student will not in the ordinary course do and which has the effect of causing or generating a sense of shame, or torment or embarrassment so as to adversely affect the physique or psyche of such fresher or any other student;
- d. any act by a senior student that prevents, disrupts or disturbs the regular academic activity of any other student or a fresher;
- e. exploiting the services of a fresher or any other student for completing the academic tasks assigned to an individual or a group of students.
- f. any act of financial extortion or forceful expenditure burden put on a fresher or any other student by students;
- g. any act of physical abuse including all variants of it: sexual abuse, homosexual assaults, stripping, forcing obscene and lewd acts, gestures, causing bodily harm or any other danger to health or person;
- h. any act or abuse by spoken words, emails, posts, public insults which would also include deriving perverted pleasure, vicarious or sadistic thrill from actively or passively participating in the discomfiture to fresher or any other student;
- i. any act that affects the mental health and self-confidence of a fresher or any other student with or without an intent to derive a sadistic pleasure or showing off power, authority or superiority by a student over any fresher or any other student.

5. Measures for prevention of ragging:-

It shall be mandatory for every technical Institution, University, deemed to be University imparting technical education to take following measures for prevention of ragging at such institutions.

1. The advertisement issued for admission by a technical institution, University including Deemed to be University concerned and/or the admission authority/ affiliating University/State Govt./UT/Central Govt. as the case may be, shall clearly mention that ragging is totally banned and anyone found guilty of ragging and/or abetting ragging is liable to be punished.
2. The 'Prospectus' and other admission related documents shall contain directions of the Supreme Court Affiliating University/admission Authority/State Govt/Central Govt. shall make it mandatory for the institutions under their jurisdiction to compulsorily incorporate such information in their 'Prospectus'. These Regulations shall be printed in the brochure of admission/instruction booklet for candidates.
3. The application form for admission/enrolment shall have a printed affidavit, preferably both in English and Hindi and/or in one of the regional languages. The affidavit should be filled up and signed by the candidate to the effect that he/she is aware of the law regarding prohibition of ragging as well as the punishments, and that he/she, if found guilty of the offence of ragging and/or abetting ragging, is liable to be punished appropriately.
4. The application form shall also contain a printed affidavit, preferably both in English and Hindi and/or in one of the regional languages and the affidavit should be signed by the parent/guardian of the applicant to the effect that he/she is also aware of the law in this regard and agrees to abide by the punishment meted out to his/her ward in case the latter is found guilty of ragging and/or abetting ragging.
5. The application for admission shall be accompanied by a document along with the School Leaving Certificate/Character Certificate which shall include a report on the behavioral pattern of the applicant, so that the institution can thereafter keep intense watch upon the student who has a negative entry in this regard.
6. A student seeking admission to the hostel shall have to submit another affidavit along with his/her application for hostel accommodation that he/she is also aware of the law in this regard and agrees to abide by the punishments meted out if he/she is found guilty of ragging and/or abetting ragging.
7. Every technical institution, University including Deemed to be University imparting technical education shall maintain a proper record of the affidavits obtained to ensure its safe up keep thereof, including digital copies of the affidavits and such digital copy should be made available to the AICTE or to an Agency identified/nominated by AICTE.

8. The AICTE or an Agency identified/nominated for the purpose and affiliating Universities and Directorate of Technical Education of the concerned State Govt./UT shall maintain an appropriate data base of the affidavits in the digital form obtained from every student at the time of admission to the technical institutions, Universities including Deemed to be Universities imparting technical education.
9. Each batch of freshers should be divided into small groups and each such group shall be assigned to a member of staff. Such staff member should interact individually with each member of the group on daily basis to ascertain the problems/difficulties, if any faced by the freshers in the Institution and extend necessary help.
10. Incase of freshers admitted to a Hostel it shall be the responsibility of the teacher incharge of the group to co-ordinate with the warden of the Hostel and to make surprise visits to the rooms in the hostel where the members of the group are lodged. Freshers should be lodged in a separate hostel block wherever possible and where such facilities are not available, the college/institution shall ensure that seniors' access to freshers' accommodation is strictly monitored by wardens, Security Guards and Staff.
11. Every institution should engage or seek the assistance of professional counselors at the time of admissions to counsel 'freshers' in order to prepare them for the life ahead, particularly for adjusting to the life in hostels. At the commencement of the academic session the Head of the technical Institution, University including Deemed to be University imparting technical education shall convene and address a meeting of various functionaries/agencies, like Wardens, representatives of students, parents/guardians, faculty, district administration including police, to discuss the measures to be taken to prevent ragging and steps to be taken to identify the offenders and punish them suitably.
12. Every fresher admitted to the technical Institution, University including Deemed to be University imparting technical education shall be given a printed information booklet detailing when and whom he/she has to turn to for help and guidance for various purposes (including Wardens, Head of the institution, members of the anti-ragging committee, relevant district and police authorities), addresses and telephone numbers of such persons/authorities, etc.
13. The technical institutions, University including Deemed to be University imparting technical education through the information booklet mentioned

above shall explain to the new entrants the arrangements for their induction and orientation which promote efficient and effective means of integrating them fully as students.

14. The information booklet mentioned above shall also tell the freshers about their rights as bona fide students and clearly instructing them that they should desist from doing anything against their will even if ordered by the seniors, and that they have nothing to fear as the institution cares for them and shall not tolerate any atrocities against them.
15. The information booklet mentioned above shall contain a calendar of events and activities laid down by the institution to facilitate and complement familiarization of juniors with the academic environment of the institution.
16. To make the community at large and the students in particular aware of the dehumanizing effect of ragging, and the approach of the institution towards those indulging in ragging, big posters (preferably with different colors for the provisions of law, punishments, etc.) shall be prominently displayed on all Notice Boards of all departments, hostels and other buildings as well as at vulnerable places. Some of such posters shall be of permanent nature in certain vulnerable places.
17. The technical Institution, University including Deemed to be University imparting technical education shall request the media to give adequate publicity to the law prohibiting ragging and the negative aspects of ragging and the institutions 's resolve to ban ragging and punish those found guilty without fear or favor.
18. The technical Institution, University including Deemed to be University imparting technical education shall identify, properly illuminate and man all vulnerable locations.
19. The technical Institution, University including Deemed to be University imparting technical education shall tighten security in its premises, especially at the vulnerable places. If necessary, intense policing shall be resorted to at such points at odd hours during the early months of the academic session.
20. The technical Institution, University including Deemed to be University imparting technical education shall utilize the vacation period before the start of the new academic year to launch wide publicity campaign against ragging through posters, information booklets, seminars, street plays, etc.

21. The faculties/departments/units of the technical Institution, University including Deemed to be University imparting technical education shall have induction arrangements (including those which anticipate, identify and plan to meet any special needs of any specific section of students) in place well in advance of the beginning of the academic year with a clear sense of the main aims and objectives of the induction process.
 22. Mobile Phones and other communication devices may be permitted in residential areas including hostels to provide access to the students particularly freshers, to reach out for help from teachers, parents and Institution authorities.
6. **Monitoring mechanism in technical institution, University including Deemed to be University imparting technical education:-**
- a) **Anti-ragging Committee:** Every institution University including Deemed to be University imparting technical education shall constitute a Committee to be known as the Anti-ragging Committee to be nominated and headed by the Head of the Institution, and consisting of representatives of civil and police administration, local media, Non Government Organizations involved in youth activities, representatives of faculty members, representatives of parents, representatives of students belonging to the freshers' category as well as senior students, non-teaching staff; and shall have a diverse mix of membership in terms of level as well as gender.
 - b) It shall be the duty of the Anti-Ragging Committee to ensure compliance with the provisions of these Regulations as well as the provisions of any law for the time being in force concerning ragging; and also to monitor and oversee the performance of the Anti-Ragging Squad in prevention of ragging in the institution.
 - c) **Anti-Ragging Squad:** Every institution University including Deemed to be University imparting technical education shall also constitute a smaller body to be known as the Anti-Ragging Squad to be nominated by the Head of the Institution with such representation as may be considered necessary for maintaining vigil, oversight and patrolling functions and shall remain mobile, alert and active at all times. Provided that the Anti-Ragging Squad shall have representation of various members of the campus community and shall have no outside representation.
 - d) It shall be the duty of the Anti-Ragging Squad to be called upon to make surprise raids on hostels, and other places vulnerable to incidents and having the potential for ragging and shall be empowered to inspect such places.

- e) It shall also be the duty of the Anti-Ragging Squad to conduct an on-the-spot enquiry into any incidents of ragging referred to it by the Head of the institution or any member of the faculty or any member of the staff or any student or any parent or guardian or any employee of a service provider or by any other person, as the case may be; and the enquiry report along with recommendations shall be submitted to the Anti-Ragging Committee for action. Provided that the Anti-Ragging Squad shall conduct such enquiry observing a fair and transparent procedure and the principles of natural justice and after giving adequate opportunity to the student or students accused of ragging and other witnesses to place before it the facts, documents and views concerning the incidents of ragging, and considerations such other relevant information as may be required.
- f) **Mentoring Cell:** Every institution shall, at the end of each academic year, in order to promote the objectives of these Regulations, constitute a Mentoring Cell consisting of students volunteering to be Mentors for freshers, in the succeeding academic year; and there shall be as many levels or tiers of Mentors as the number of batches in the institution, at the rate of one Mentor for six freshers and one Mentor of a higher level for six Mentors of the lower level.
- g) **Monitoring Cell on Ragging:-** The State Govt./UT and the affiliating University shall set up a Monitoring Cell on Ragging to coordinate with the institutions to monitor the activities of the Anti-Ragging Committees, Squads, and Mentoring Cells, regarding compliance with the instructions on conducting orientation programmes, counseling sessions, etc., and regarding the incidents of ragging, the problem faced by wardens and other officials, etc. This Cell shall also review the efforts made by such institutions to publicize anti-ragging measures, cross-verify the receipt of affidavits from candidates/students and their parents/guardians every year, and shall be the prime mover for initiating action by the University authorities to suitably amend the Statutes or Ordinances or Bye-laws to facilitate the implementation of anti ragging measures at the level of the institution.
- h) The Monitoring Cell shall coordinate with the the institutions, universities including deemed to be universities imparting technical education to achieve the objectives of these Regulations; and the Monitoring Cell shall call for reports from the Heads of institutions in regard to the activities of the Anti-Ragging Committees, Anti-Ragging Squads, and the Mentoring Cells at the institutions, and it shall also keep itself abreast of the decisions of the Anti-Ragging Committees etc.

- i) The Monitoring Cell shall also review the efforts made by institutions to publicize anti-ragging measures, soliciting of affidavits from parents/guardians and from students, each academic year, to abstain from ragging activities or willingness to be penalized for violation; and shall function as the prime mover for initiating action for amending the Statutes or Ordinances or Bye-laws to facilitate the implementation of anti-ragging measures at the level of the institution.

7. Action to be taken against the Principal or the Head of the Institution/Faculty Members/Non-Teaching staff of technical institution, Universities including Deemed to be Universities imparting technical education.

1. The Head of the Institution along with other administrative authorities should take adequate measures for prevention of ragging. Any lapse on the part of these authorities shall make them liable for criminal action for negligence of duty. The technical Institution, University including Deemed to be University imparting technical education should incorporate a clause in their letter of appointment that the Director, Faculty and other administrative Heads should ensure all possible steps for prevention of ragging in the premises of the educational institutions, and that they are liable for action, in case of non-compliance.
2. The Principal or Head of the Institution/Department shall obtain an affidavit from every employee of the Institution including teaching/non-teaching staff, contract labor employed in the premises either for running canteen or as watch and ward staff or for cleaning or maintenance of the building, lawns etc. that he/she would report promptly any case of ragging which comes to his/her notice. A provision shall be made in the service rules for issuing certificates of appreciation to such members of the staff who report ragging which will form part of their service records.
3. Departmental enquiries shall be initiated, in addition to penal consequences against such heads of the Institution/Faculty members/non-teaching staff who display an apathetic or insensitive attitude towards complaints of ragging and would not take timely steps in the prevention of ragging and punishing those who rag.
4. The Principal or the Head of the Institution/Faculty Members/Non-Teaching staff, if found negligent in taking necessary measures for ensuring safety of students and preventing the ragging would be declared unfit for holding any post in any technical institution, University including Deemed to be University imparting technical education.

8. Actions to be taken against students for indulging and abetting ragging in technical institutions Universities including Deemed to be University imparting technical education:-

1. The punishment to be meted out to the persons indulged in ragging has to be exemplary and justifiably harsh to act as a deterrent against recurrence of such incidents.
2. Every single incident of ragging a First Information Report (FIR) must be filed without exception by the institutional authorities with the local police authorities.
3. The Anti-Ragging Committee of the institution shall take an appropriate decision, with regard to punishment or otherwise, depending on the facts of each incident of ragging and nature and gravity of the incident of ragging.
4. a) Depending upon the nature and gravity of the offence as established the possible punishments for those found guilty of ragging at the institution level shall be any one or any combination of the following:-
 - (i) Cancellation of admission
 - (ii) Suspension from attending classes
 - (iii) Withholding/withdrawing scholarship/fellowship and other benefits
 - (iv) Debarring from appearing in any test/examination or other evaluation process
 - (v) Withholding results
 - (vi) Debarring from representing the institution in any regional, national or international meet, tournament, youth festival, etc.
 - (vii) Suspension/expulsion from the hostel
 - (viii) Rustication from the institution for period ranging from 1 to 4 semesters
 - (ix) Expulsion from the institution and consequent debarring from admission to any other institution.
 - (x) Collective punishment: when the persons committing or abetting the crime of ragging are not identified, the institution shall resort to collective punishment as a deterrent to ensure community pressure on the potential raggers.
- b) An appeal against the order of punishment by the Anti-Ragging Committee shall lie,

- i. In case of an order of an institution, affiliated to or constituent part, of the University, to the Vice-Chancellor of the University;
 - ii. In case of an order of a University, to its Chancellor.
 - iii. In case of an institution of national importance created by an Act of Parliament, to the Chairman or Chancellor of the institution, as the case may be.
5. The institutional authorities shall intimate the incidents of ragging occurred in their premises along with actions taken to the Council from time to time.

9 Action to be taken against the technical Institution, University including Deemed to be University imparting technical education which fail to take measures for prevention of ragging:-

1. Role of the concerned technical institutions, Universities including Deemed to be Universities imparting technical education shall be open to scrutiny for the purpose of finding out whether they have taken effective steps for preventing ragging and action taken against provision indulged and/or abetting ragging. The Council shall constitute Committees to inspect technical institutions, Universities including Deemed to be Universities imparting technical education to verify the status of anti ragging measures and to investigate specific instances of ragging and take appropriate action.
2. The technical Institution, University including Deemed to be University imparting technical education should submit an affidavit along with its compliance report submitted to AICTE annually with details of measures taken for prevention of ragging in technical institutions. The Compliance Report should also contain the details of the instances of ragging and action taken against students, and others for indulging and abetting ragging.
3. All Letters of Approval issued by AICTE such as extension of approval letters, letters issued for additional courses/increase in intake and letters issued for new technical institutions, release of grants, letters of approval issued to integrated campus, second shift etc. shall contain a specific clause of prevention of ragging.
4. The AICTE shall, in respect of any institution that fails to take adequate steps to prevent ragging or fails to act in accordance with these Regulations or fails to punish perpetrators or incidents of ragging suitably, take one of more of the following measures, namely;

- i. No admission/Withdrawal of approval granted under section 10(k) of AICTE Act.
- ii. Withholding any grant allocated.
- iii. Declaring the institution ineligible for consideration for any assistance under any of the general or special assistance programmes of the AICTE.
- iv. Informing the general public, including potential candidates for admission, through a notice displayed prominently in the newspapers or other suitable media and posted on the website of the AICTE, declaring that the institution does not possess the minimum academic standards.
- v. Taking such other action within its powers as it may deem fit and impose such other penalties as may be provided in the Act for such duration of time as the institution complies with the provisions of these Regulations.

5. As regards the Universities including Deemed to be Universities imparting technical education the actions proposed to be taken such as stopping release of grants, withdrawal of approval/recognition will be sent to University Grants Commission (UGC), Ministry of Human Resource Development (MHRD), Govt. of India and the concerned State Govt./UT. The UGC, MHRD Govt. of India, and the State Govt./UT concerned shall initiate immediate action on the recommendations of the Council.

10. Duties and Responsibilities of the All India Council for technical Education:-

- a) All India Council for technical Education, or the Central Government or the agency authorized for the purpose shall establish, fund and operate, a toll-free Anti-Ragging Helpline, operational round the clock, which could be accessed by students in distress owing to ragging related incidents.
- b) Any distress message received at the Anti-Ragging Helpline shall be simultaneously relayed to the Head of the Institution, the Warden of the Hostels, the Nodal Officer of the affiliating University, if the incident reported has taken place in an institution affiliated to a University, the concerned District authorities and if so required, the District Magistrate, and the Superintendent of Police, and shall also be web enabled so as to be in the public domain simultaneously for the media and citizens to access it.
- c) The Head of the institution shall be obliged to act immediately in response to the information received from the Anti-Ragging Helpline as at sub-clause (b) of this clause.

- d) The telephone numbers of the Anti-Ragging Helpline and all the important functionaries in every institution, Heads of institutions, faculty members, members of the anti-ragging committees and anti- ragging squads, district and sub-divisional authorities and state authorities, Wardens of hostels, and other functionaries or authorities where relevant, shall be widely disseminated for access or to seek help in emergencies.
- f) The All India Council for technical Education, the Central Government or the agency authorized for the purpose shall maintain an appropriate data base to be created out of affidavits, affirmed by each student and his/her parents/guardians and stored electronically by the institution; and such database shall also function as a record of ragging complaints received, and the status of the action taken thereon.
- g) The All India Council for technical Education, the Central Government or the agency authorized for the purpose shall make available the database to a non-governmental agency to be nominated by the Central Government, to build confidence in the public and also to provide information of non compliance with these Regulations to the Councils and to such bodies as may be authorized by the All India Council for technical Education/Central Government.

11. The All India Council for technical Education shall take the following regulatory steps, namely;

- a) The All India Council for technical Education shall make it mandatory for the institutions to incorporate in their prospectus, the directions of the Central Government or the State Level Monitoring Committee with regard to prohibition and consequences of ragging, and that non-compliance with these Regulations and directions so provided, shall be considered as lowering of academic standards by the institution, therefore making it liable for appropriate action.
- b) The All India Council for technical Education shall verify that the institutions strictly comply with the requirement of getting the affidavits from the students and their parents/guardians as envisaged under these Regulations.
- c) The All India Council for technical Education shall include a specific condition in the Utilization Certificate, in respect of any financial assistance or grants-in-aid to any institution under any of the general or special schemes of the All India Council for technical Education, that the institution has complied with the anti-ragging measures.

- d) Any incident of ragging in an institution shall adversely affect its accreditation, ranking or grading by National Board of Accreditation or by any other authorised accreditation agencies while assessing the institution for accreditation, ranking or grading purposes.
- e) The All India Council for technical Education shall constitute an Inter-Council Committee, consisting of representatives of the various Councils, the Non-Governmental agency responsible for monitoring the database maintained by the All India Council for technical Education/Central Government and such other bodies in higher education, to coordinate and monitor the anti-ragging measures in institutions across the country and to make recommendations from time to time; and shall meet at least once in six months each year.
- f) The All India Council for technical Education shall institute an Anti-Ragging Cell within the AICTE as an institutional mechanism to provide secretarial support for collection of information and monitoring, and to coordinate with the State Level Monitoring Cells and University Level Committees for effective implementation of anti-ragging measures, and the Cell shall also coordinate with the Non-Governmental agency responsible for monitoring the database maintained by the All India Council for technical Education/central Government.

(Member Secretary)